SYNTHETIC TEST DOCUMENT - NOT A REAL AWARD - ALL NAMES AND NUMBERS ARE FICTIONAL

PROCEEDINGS BEFORE THE INSURANCE OMBUDSMAN, DEMO OFFICE
(Under Rule 17 of the Insurance Ombudsman Rules, 2017)

Complaint No: DEM-H-000-0000-0056
Award No: IO/DEM/A/HI/0056/2023-24
Complainant: Shri Nemo Exampleton, 00 Placeholder Lane, Samplepur, PIN 099990
Contact: 00000 00056
Respondent: Fictional General Insurance Co. Ltd.
Policy No: DEMO/POL/0000/0056
Type of policy: Individual Mediclaim
Date of Award: 12.05.2023

Brief facts of the case
The complainant was admitted to Lakeside Demo Nursing Home for three days in January 2023 for treatment of a kidney stone. He lodged a claim for Rs. 1,20,000 under the policy. The policy had been in force since March 2021. The complainant states that the condition was diagnosed for the first time during this admission, after the policy began.

Insurer's submission
The insurer repudiated the claim under the pre-existing disease clause. It submitted that a discharge summary mentioned abdominal pain "on and off for some time" and argued that the condition therefore existed before the policy was taken.

Observations and conclusion
The discharge summary does not record any earlier diagnosis or treatment. A vague history of pain is not proof that the disease was diagnosed before the inception of the policy. The insurer has not produced any document showing prior consultation.

AWARD
Taking into account the facts and circumstances of the case, the complaint is allowed. The insurer is directed to pay Rs. 1,20,000 to the complainant within 30 days.

Dated at Demo Office on 12.05.2023
INSURANCE OMBUDSMAN